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Case Number: 26STCV06979 Hearing Date: September 22, 2026 Dept: 413

TENTATIVE RULING

HEARING DATE: September 22, 2026

CASE NUMBER: 26STCV06979

CASE NAME: Ashley Koenig v. DoorDash, Inc.

MOVING PARTY: Defendant DoorDash, Inc.

OPPOSING PARTY: Plaintiff Ashley Koenig

PROCEEDING: DEMURRER

RULING SUMMARY: Defendant DoorDash, Inc.'s Demurrer is sustained with leave to amend. The Court continues the Case Management Conference to _____, 2026, at 8:30AM, and sets an Order to Show Cause Re: Amended Complaint for the same date and time.

Background

On March 4, 2026, Plaintiff Ashley Koenig ("Plaintiff" or "Koenig") filed her Complaint against Defendant DoorDash, Inc. ("Defendant" or "DoorDash") and Does 1 through 15, alleging nine causes of action for: (1) violation of Labor Code section 1102.5; (2) disability discrimination in violation of Government Code section 12940, et seq.; (3) sex discrimination in violation of the FEHA; (4) sexual harassment in violation of the FEHA; (5) failure to provide reasonable accommodations in violation of the FEHA; (6) failure to engage in the interactive process in violation of the FEHA; (7) retaliation in violation of the FEHA; (8) failure to prevent discrimination and retaliation in violation of the FEHA; and (9) wrongful termination in violation of public policy. Plaintiff alleges that after she raised concerns about pay, favoritism, and ethics in the workplace and took disability-related leave, Defendant retaliated and discriminated against her—failing to accommodate or engage in the interactive process, permitting sexual harassment/hostile rumors, denying leave needed for surgery, and ultimately terminating her on April 28, 2025.

On April 20, 2026, Defendant filed the instant Demurrer ("Demurrer"). On August 25, 2026, Plaintiff filed her Opposition. On August 31, 2026, Defendant filed its Reply.

LEGAL STANDARD

A demurrer is a pleading that may be used to test the legal sufficiency of the factual allegations in the complaint. (Code Civ. Proc., §430.10.) There are two types of demurrers: general demurrers and special demurrers. (See *McKenney v. Purepac Pharmaceutical Co.* (2008) 167 Cal.App.4th 72, 77.)

General demurrers can be used to attack pleadings for failure to state facts sufficient to constitute a cause of action or for lack of subject matter jurisdiction. (Code Civ. Proc., §430.10, subd. (e); *McKenney*, 167 Cal.App.4th at 77.) Such demurrers can be used only to challenge defects that appear on the face of the pleading or from matters outside the pleading that are judicially noticeable; evidence or extrinsic matters are not considered. (Code Civ. Proc., §§ 430.30, 430.70; *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318; *Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.)

For the purpose of testing the sufficiency of the cause of action, the Court admits "all material facts properly pleaded" and "matters which may be judicially noticed," but does not consider contentions, deductions, or conclusions of fact or law. (*Blank*, 39 Cal.3d at 318.) It gives these facts "a reasonable interpretation, reading it as a whole and its parts in their context." (*Ibid.*) At the pleading stage, a plaintiff need only allege ultimate facts sufficient to apprise the defendant of the factual basis for the claim against him. (*Semole v. Sansoucie* (1972) 28 Cal. App. 3d 714, 721.) The face of the complaint includes exhibits attached to the complaint. (*Frantz v. Blackwell* (1987) 189 Cal.App.3d 91, 94.) "If facts appearing in the exhibits contradict those alleged, the facts in the exhibits take precedence." (*Holland v. Morse Diesel Internat., Inc.* (2001) 86 Cal.App.4th 1443, 1447.)

REQUEST FOR JUDICIAL NOTICE

Defendant request judicial notice of the following: Order on Motion to Compel Arbitration and Stay Action in *Brigitt Goldman v. Nordstrom, Inc.*, dated February 24, 2026 in the Los Angeles County Superior Court, Case No. 25STCV20165.

Defendant's Request for Judicial Notice is GRANTED as to the existence and authenticity of the Court record; however, the Court does not take judicial notice of the truth of any factual assertions contained in the Order.

DISCUSSION

Defendant demurs to the third cause of action for sex discrimination under the FEHA and the fourth cause of action for sexual harassment under the FEHA on the basis that the Complaint fails to state sufficient facts to constitute these causes of action.

A. Meet and Confer Requirement

Code of Civil Procedure section 430.41 requires that "[b]efore filing a demurrer pursuant to this chapter, the demurring party shall meet and confer in person, by telephone, or by video conference with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer." (Code Civ. Proc., §430.41, subd. (a).) The parties are to meet and confer at least five days before the date the responsive pleading is due. (Code Civ. Proc., §430.41, subd. (a)(2).) Thereafter, the demurring party shall file and serve a declaration stating either (1) the means by which the parties met and conferred and that the parties did not reach an agreement to resolve the issues raised in the demurrer or (2) the party that filed the pleading failed to respond to the meet and confer request or otherwise failed to meet and confer in good faith. (Code Civ. Proc., §430.41, subd. (a)(3).)

Defendant has not submitted a declaration attesting to its meet and confer efforts; thus, Defendant has not complied with this requirement. However, “[a] determination by the court that the meet and confer process was insufficient shall not be grounds to overrule or sustain a demurrer.” (Code Civ. Proc., §430.41, subd. (a)(4).) Accordingly, the Court proceeds with its adjudication of the Demurrer.

B. Complaint

According to the Complaint, Plaintiff began her employment with Defendant around September 12, 2022, as a Full Time Support Escalations Representative. (Complaint ¶ 7.) Around June and July 2024, Plaintiff reported concerns about leadership, her supervisor's professionalism, pay discrepancies, favoritism, ethical issues, and other concerns. (Id. ¶¶ 10-13.) Around July 2024, Plaintiff reported that her supervisor engaged in inappropriate behavior, including a personal relationship with a subordinate. (Id. ¶¶ 14-15.)

On August 5, 2024, Defendant's Workplace Investigation Managers (“Managers”) interviewed Plaintiff regarding an investigation concerning her supervisor and Plaintiff reported that her supervisor had an inappropriate relationship with a subordinate, among other concerns. (Id. ¶ 17.) On August 29, 2024, Plaintiff was interviewed by the Managers again and during the interview, and learned that they had accessed her personal information, including her dating profile. (Id. ¶ 18.) Around August 29 and September 23, 2024, “Plaintiff expressed to Defendant that she had serious concerns about why and how the investigators accessed her private, personal information” and also informed Defendant that her co-workers had initiated rumors that she engaged in a romantic relationship with her supervisor. (Id. ¶ 19.) Plaintiff requested that Defendant take action against the coworkers initiating such rumors. (Ibid.) Around September 23, 2024, Plaintiff reported to Defendant that she received unsolicited calls and text messages from her colleagues suggesting that she was involved in an inappropriate relationship with her supervisor and reported that these false allegations were damaging to her reputation. (Id. ¶ 20.)

On October 3, 2024, Plaintiff emailed Defendant's Senior Workplace Investigator Anthony Martinez (“Martinez”) and “reported that she experienced a hostile work environment, retaliation from her former manager, inappropriate disclosures of her personal information, false rumors about her, reputational damage from these rumors, severe emotional distress, and that she needed a medical leave of absence as a result of the emotional distress.” (Id. ¶ 21.) Around October 17, 2024, Martinez informed Plaintiff that he could not substantiate her claims. (Id. ¶ 22.)

From February through April 2025, Defendant's leave and accommodations personnel repeatedly requested updated medical documentation from Plaintiff and discussed her return-to-work date from disability leave. After Plaintiff reported delays in obtaining documentation and asked for an extension, Defendant terminated her employment on April 28, 2025. (Id., ¶¶ 23-35.)

C. Third Cause of Action – Sex Discrimination under the FEHA

The Fair Employment and Housing Act (FEHA) seeks to eliminate discrimination in the workplace. As such, no person shall be discriminated against in employment opportunities, among other things, on the basis of race, religion, national origin, mental and physical ability, sex, or gender. (Gov. Code, §§ 12920, 12921(a), 12940(a).) To establish a prima facie case of discrimination, a plaintiff must show that “(1) he was a member of a protected class, (2) he was qualified for the position he sought or was performing competently in the position he held, (3) he suffered an adverse employment action, such as termination, demotion, or denial of an available job, and (4) some other circumstance suggests discriminatory motive.” (*Guz v. Bechtel National, Inc.* (2000) 24 Cal.4th 317, 355.)

The Complaint incorporates all general allegations and adds the following allegations under the sex discrimination cause of action. Plaintiff alleges that “Defendants engaged in unlawful employment practices in violation of the FEHA by discriminating against Plaintiff on account of sex and/or gender. Defendants discriminated against and harassed Plaintiff on account of her gender.” (Complaint ¶ 63.) The discriminatory conduct “included, but was not limited to, the creation of a hostile work environment, making false allegations, and terminating Plaintiff's employment for making complaints regarding the sexual harassment she endured.” (Ibid.) As a proximate result, Plaintiff has and continues to suffer harm, including “loss of salary

and benefits, and the intangible loss of employment related opportunities in her field and damage to her professional reputation,” “emotional distress, humiliation, mental anguish and embarrassment, as well as the manifestation of physical symptoms.” (Id. ¶¶ 64-65.) Plaintiff also alleged that Defendants engaged in oppression, fraud, and/or malice, thus, she is entitled to punitive damages. (Id. ¶ 67.)

Defendant argues that the Complaint does not allege any facts suggesting that Plaintiff's sex was a motivating factor in the termination. Rather, the allegations mainly concern Plaintiff's disability and leave of absence, complaints about workplace management, pay discrepancies, and her supervisor's alleged violations, and a subsequent workplace investigation. Any identified adverse action, including denial of leave and accommodation and termination, is expressly tied to the disability claims. Moreover, Plaintiff's sex discrimination claim is unsupported because it relies entirely on insufficient harassment allegations, making both claims inadequately pled.

In the Opposition, Plaintiff argues that the Complaint does allege that “Defendants engaged in unlawful employment practices in violation of the FEHA by discriminating against Plaintiff on account of sex and/or gender. Defendants discriminated against and harassed Plaintiff on account of her gender.” (Complaint ¶ 63.) Taken together, the allegations in the Complaint establish that Defendant created a hostile work environment when it accessed Plaintiff's dating profile and allowed employees to spread rumors about Plaintiff's dating life and sexual orientation and later terminated Plaintiff for reporting this conduct. Plaintiff's allegation that she was terminated after requesting more time to submit documentation does not preclude the possibility that her complaints of sexual harassment also factored into Defendant's decision. Plaintiff's sex discrimination claim is adequately supported because she alleges membership in a protected class as a woman, satisfactory job performance, an adverse termination, and circumstances suggesting discriminatory motive—namely that she was terminated after complaining of gender-based harassment.

In its Reply, Defendant contends that Plaintiff's discrimination theory ultimately relies on the claim that Defendant terminated her for reporting sex-based harassment, which is a retaliation theory rather than sex discrimination. A FEHA discrimination claim requires facts showing sex was a substantial motivating factor in the adverse action, yet the Complaint alleges no comparator, no sex-based statements, no decision-maker with sex-based animus, and attributes all adverse actions to neutral reasons related to leave and documentation. Given that the allegations do not indicate a sex-based motive, the facts support retaliation at most—not sex discrimination.

The Court concludes that the third cause of action fails to state a claim for sex discrimination. The Complaint alleges only generally that Defendant engaged in unlawful employment practices in violation of the FEHA by discriminating against Plaintiff on account of sex and/or gender, that Defendant's discriminatory behavior included creation of a hostile work environment, false rumors, and termination for harassment claims. These allegations are conclusory and do not identify a specific actor who harbored sex-based animus, does not allege that a comparator of a different sex was treated more favorably, does not allege any sex-based statement by any decision-maker, and does not allege that any adverse action was taken in circumstances suggesting sex-based motivation. The pleaded facts attribute the termination to leave documentation and return-to-work issues and do not support an inference that Plaintiff's sex was a substantial motivating factor in the termination or other adverse action.

Thus, the demurrer to the third cause of action is sustained.

D. Fourth Cause of Action – Sexual Harassment under the FEHA

Pursuant to the Fair Employment and Housing Act (“FEHA”), Government Code section 12940, subdivision (j)(4)(C), “‘harassment’ because of sex includes sexual harassment, gender harassment, and harassment based on pregnancy, childbirth, or related medical condition. Sexually harassing conduct need not be motivated by sexual desire.” “FEHA's prohibition against sexual harassment includes protection from a broad range of conduct, ranging from expressly or impliedly conditioning employment benefits on submission to or tolerance of unwelcome sexual advances, to the creation of a work environment that is hostile or abusive on the basis of sex.” (Lewis v. City of Benicia (2014) 224 Cal.App.4th 1519, 1524 [internal quotations omitted].)

A claim for harassment under FEHA requires allegations that “(1) plaintiff belongs to a protected group; (2) plaintiff was subject to unwelcome harassment; (3) the harassment complained of was based on plaintiff’s membership in the protected group; (4) the harassment complained of was sufficiently pervasive so as to alter the conditions of employment and create an abusive working environment; and (5) respondeat superior.” (Guthrey v. State of California (1998) 63 Cal.App.4th 1108, 1122.) “A single incident of harassing conduct is sufficient to create a triable issue regarding the existence of a hostile work environment if the harassing conduct has unreasonably interfered with the plaintiff’s work performance or created an intimidating, hostile, or offensive working environment.” (Gov. Code, §12923, subd. (b).)

“[T]he question of whether or not there is a hostile work environment must be determined from the totality of the circumstances. In making this determination the trier of fact should consider, ‘(1) the nature of the unwelcome sexual acts or words (with physical touching generally considered more offensive than mere words); (2) the frequency of the offensive acts or encounters; (3) the total number of days over which all the offensive conduct occurred; and (4) the context in which the sexually harassing conduct occurred.’” (Sheffield v. Los Angeles County (2003) 109 Cal.App.4th 153.)

In *Roby v. McKesson Corp.*, the Court noted that there is a distinction between discrimination and harassment in regard to the application of FEHA, “discrimination refers to bias in the exercise of official actions on behalf of the employer, and harassment refers to bias that is expressed or communicated through interpersonal relations in the workplace.” (*Roby v. McKesson Corp.* (2009) 47 Cal.4th 686, 707.) Thus, harassment focuses on “conduct outside the scope of necessary job performance, conduct presumably engaged in for personal gratification, because of meanness or bigotry, or for other personal motives... [Citation.]” (*Ibid.*) The Court noted that “harassment is generally concerned with the message conveyed to an employee, and therefore with the social environment of the workplace, whereas discrimination is concerned with explicit changes in the terms or conditions of employment. (*Ibid.*) However, “in some cases the hostile message that constitutes the harassment is conveyed through official employment actions, and therefore evidence that would otherwise be associated with a discrimination claim can form the basis of a harassment claim.” (*Ibid.*; *Miller v. Department of Corrections* (2005) 36 Cal.4th 446, 468.) Thus, “in analyzing the sufficiency of evidence in support of a harassment claim, there is no basis for excluding evidence of biased personnel management actions so long as that evidence is relevant to prove the communication of a hostile message.” (*Ibid.*)

The Complaint incorporates all general allegations and adds the following allegations under the sexual harassment cause of action. Plaintiff alleges that “Defendants harassed Plaintiff on account of her gender” and the harassing conduct, which was “unwanted, serious, and pervasive” included “the creation of a hostile work environment.” (Complaint ¶¶ 70-72.) As a proximate result, Plaintiff has and continues to suffer harm, including “loss of wages and benefits, and the intangible loss of employment related opportunities in Plaintiff’s field and damage to Plaintiff’s professional reputation,” “emotional distress, humiliation, mental anguish, and embarrassment, as well as the manifestation of physical symptoms.” (*Id.* ¶¶ 73-74.) Plaintiff also alleged that Defendants engaged in oppression, fraud, and/or malice, thus, she is entitled to punitive damages. (*Id.* ¶ 75.)

Defendant presents the following arguments in its Demurrer. First, Plaintiff fails to allege severe or pervasive conduct as all of the allegations are conclusory and do not contain specific information about who made the alleged comments about Plaintiff, the frequency and duration of the conduct, and how it implicates Plaintiff’s sex. Second, Plaintiff fails to allege that the subject conduct was because of her sex. Third, Plaintiff’s allegations “describe the byproduct of a workplace investigation and ordinary interpersonal workplace dynamics” which, at most constitute employment management actions, not a harassment claim.

In her Opposition, Plaintiff argues that the allegations, taken together, sufficiently plead a cause of action for harassment based on sex/gender. The Complaint alleges the nature of the unwelcome conduct, the frequency, the duration (occurring within a period of three months between August and October 2024), and the context. Thus, the allegations establish that the conduct was severe and pervasive. Furthermore, the harassing conduct involved Plaintiff’s dating life and dating profile, spreading false rumors about an inappropriate, romantic relationship with her supervisor of the same sex. These allegations do not constitute a necessary workplace function and qualify as harassment. Plaintiff also argues that severity is a factual question generally inappropriate for resolution at the pleading stage.

In its Reply, Defendant argues that Plaintiff’s opposition relies on a “based on sex” theory which is not presented anywhere in the Complaint. There are no allegations that the rumors concerned same-sex dating or comments about Plaintiff’s sexual

orientation; instead, the Complaint describes rumors of a romantic relationship with her supervisor and an inappropriate relationship with another coworker, with no mention of sexual orientation. Defendant adds that the harassment claim also fails because the conduct, including the rumors, calls, and texts, cannot be imputed to DoorDash. Plaintiff's own allegations show DoorDash followed statutory requirements: she reported the rumors, DoorDash investigated them, and an investigator concluded the claims could not be substantiated. Plaintiff's disagreement with the outcome does not make coworkers' rumors attributable to DoorDash; instead, it demonstrates that DoorDash took prompt, appropriate action, which precludes employer liability.

The Court concludes that Plaintiff has adequately alleged conduct that could be found to be sufficiently severe or pervasive. In the Complaint, Plaintiff alleges that: (1) during a workplace investigation, Defendant accessed her personal dating app profile without her consent; (2) co-workers initiated and spread rumors that she engaged in a romantic relationship with her supervisor; (3) she received unsolicited calls and text messages from colleagues suggesting that she was in an inappropriate relationship with her supervisor; and (4) she reported a hostile work environment, reputational damage, and severe emotional distress. These allegations span approximately three months, from August through October 2024. Even "A single incident of harassing conduct is sufficient to create a triable issue regarding the existence of a hostile work environment if the harassing conduct has unreasonably interfered with the plaintiff's work performance or created an intimidating, hostile, or offensive working environment." (Gov. Code, §12923, subd. (b).)

However, when harassment is alleged against non-supervisory co-workers, an employer is liable under the FEHA only if the employer knew or should have known about the misconduct and failed to take immediate and appropriate corrective action. (Gov. Code., §12940, subd. (j)(1).) Here, Plaintiff alleges that she reported the rumors and Defendant investigated her reports, but could not substantiate her claims. This constitutes immediate and appropriate corrective action that forecloses employer liability for co-worker conduct.

The Court finds that Plaintiff fails to allege facts sufficient to establish that the alleged co-worker conduct is imputable to Defendant. The demurrer to the fourth cause of action is sustained.

E. Leave to Amend

Leave to amend must be allowed where there is a reasonable possibility of successful amendment. (Goodman v. Kennedy, (1976) 18 Cal.3d 335, 349.) The burden is on the Plaintiff to show the Court that a pleading can be amended successfully. (Lewis v. Youtube, LLC, (2015) 244 Cal.App.4th 118, 226.)

The Court finds that there is a reasonable possibility that amendment will cure the deficiencies noted in the Complaint. The demurrer to the third and fourth causes of action is sustained with leave to amend.

Conclusion

Defendant DoorDash Inc.'s Demurrer to the third and fourth causes of action is SUSTAINED with leave to amend. Plaintiff must file and serve an amended complaint within 20 days of the Court's order. The Court continues the Case Management Conference to _____, 2026, at 8:30AM, and sets an Order to Show Cause Re: Amended Complaint for the same date and time.

Date: September 22, 2026 _____

William E. Weinberger

Judge, Los Angeles Superior Court

TENTATIVE RULING

HEARING DATE: September 22, 2026

CASE NUMBER: 26STCV06979

CASE NAME: Ashley Koenig v. DoorDash,

Inc.

MOVING PARTY: Defendant DoorDash, Inc.

OPPOSING PARTY: Plaintiff Ashley Koenig

PROCEEDING: Motion to compel arbitration

RULING SUMMARY: Defendant DoorDash, Inc.'s Motion to

Compel Arbitration and Stay Proceedings is denied without prejudice.

Background

On March

4, 2026, Plaintiff Ashley Koenig ("Plaintiff" or "Koenig") filed her Complaint

against Defendant DoorDash, Inc. ("Defendant" or "DoorDash") and Does 1 through

15, alleging causes of action for (1) violation of Labor Code section 1102.5;

(2) disability discrimination in violation of Government Code section 12940, et

seq.; (3) sex discrimination in violation of the FEHA; (4) sexual

harassment in violation of the FEHA; (5) failure to provide reasonable accommodations

in violation of the FEHA; (6) failure to engage in the interactive process in

violation of the FEHA; (7) retaliation in violation of the FEHA; (8) failure to

prevent discrimination and retaliation in violation of the FEHA; and (9)

wrongful termination in violation of public policy. Plaintiff alleges that after she raised concerns about pay, favoritism, and ethics in the workplace and took disability-related leave, Defendant retaliated and discriminated against her—failing to accommodate or engage in the interactive process, permitting sexual harassment/hostile rumors, denying leave needed for surgery, and ultimately terminating her on April 28, 2025.

On April

20, 2026, Defendant filed this Motion to Compel Arbitration and Stay

Proceedings (“Motion”). On September 9,

2026, Plaintiff filed her Opposition. On

September 15, 2026, Defendant filed its Reply.

LEGAL STANDARD

California law incorporates many of the basic

policy objectives contained in the Federal Arbitration Act (“FAA”), including a

presumption in favor of arbitrability. (*Engalla v.*

Permanente Medical Group, Inc., (1997) 15 Cal.4th 951, 971-72.) Code of Civil Procedure section

1281.2 permits a party to file a motion to request that the Court order the

parties to arbitrate a controversy. Under section 1281.2, the Court shall order

the petitioner and the respondent to arbitrate the controversy if

it determines that an agreement to arbitrate the controversy exists, unless

it determines that:

(a) The right to compel arbitration has been waived by the

petitioner; or

(b) Grounds exist for the revocation of the agreement.

(c) A party to the arbitration agreement is also a party to

a pending court action or special proceeding with a third party, arising out of

the same transaction or series of related transactions and there is a

possibility of conflicting rulings on a common issue of law or fact. For

purposes of this section, a pending court action or special proceeding includes

an action or proceeding initiated by the party refusing to arbitrate after the

petition to compel arbitration has been filed, but on or before the date of the

hearing on the petition. This subdivision shall not be applicable to an

agreement to arbitrate disputes as to the professional negligence of a health

care provider made pursuant to Section 1295.

(Code Civ. Proc., § 1281.2.)

Doubts as to whether an arbitration clause applies to a

particular dispute are to be resolved in favor of sending the parties to

arbitration. (Engalla, 15 Cal.4th

at 971-72.) The Court should order

them to arbitrate unless it is clear that the arbitration clause cannot be

interpreted to cover the dispute. (Ibid.;

Code Civ. Proc., §1281.2 [“ . . . unless it determines that: (a) The right to

compel arbitration has been waived by the petitioner; or (b) Grounds exist for

the revocation of the agreement”].) Unless

the parties clearly and unmistakably provide otherwise, the question of whether

the parties agreed to arbitrate is to be decided by the court, not the

arbitrator. (First Options of

Chicago, Inc. v. Kaplan (1995) 514 U.S. 938, 943-944.) The right to arbitration depends upon contract; a petition

to compel arbitration is simply a suit in equity seeking specific performance

of that contract. (First Options of

Chicago, 514 U.S. at 944.)

The party seeking to enforce the arbitration agreement

bears the burden of proving the existence of a valid arbitration agreement by

the preponderance of the evidence. (Giuliano

v. Inland Empire Personnel, Inc. (2007) 149 Cal.App.4th 1276, 1284.) The trial court first decides whether an

enforceable arbitration agreement exists between the parties and then determines whether

the plaintiff's claims are covered by the agreement. (Omar v. Ralphs Grocery Co. (2004) 118

Cal.App.4th 955, 961.)

The party opposing the petition to compel arbitration bears

the burden of proving by a preponderance of the evidence any fact necessary to

its defense. (*Giuliano v. Inland*

Empire Personnel, Inc., *supra*, at 1284.) In these summary proceedings, the trial court

sits as a trier of fact, weighing all the affidavits, declarations, and other

documentary evidence, as well as oral testimony received at the court's

discretion, to reach a final determination.

(*Ibid.*)

DISCUSSION

Defendant

DoorDash moves to compel plaintiff Ashley Koenig to arbitrate all claims

asserted in this employment action and to stay the judicial proceedings pending

arbitration. Defendant argues that

before Plaintiff began her employment, she signed DoorDash's Offer Letter and

Arbitration Agreement on August 24, 2022. On March 4, 2026, Plaintiff filed this action

asserting nine causes of action against Defendant. On March 13, 2026, DoorDash asked Plaintiff

to submit her claims to arbitration, but Plaintiff did not agree to do so.

A.

The existence of an arbitration

agreement.

Under both the Federal Arbitration

Act ("FAA") and California law, arbitration agreements are valid, irrevocable, and enforceable, except on such grounds that exist at law or equity for voiding a contract. (Winter v. Window

Fashions Professionals, Inc. (2008) 166 Cal.App.4th 943, 947.) The party moving to compel arbitration must establish the existence of a written arbitration agreement between the parties.

(Code Civ. Proc., §1281.2.) In ruling on a motion to compel arbitration, the court must first determine whether the parties actually agreed to arbitrate the dispute, and general principles of California contract law help guide the court in making this determination. (Mendez

v. Mid-Wilshire Health Care Center (2013) 220 Cal.App.4th 534, 541.)

"With respect to the moving party's burden to provide evidence of the existence of an agreement to arbitrate, it is generally sufficient for that party to present a copy of the contract to the court. (See Condee,

supra, 88 Cal.App.4th 215, 218; see also Cal. Rules of Court, Rule

3.1330 ["A petition to compel arbitration or to stay proceedings pursuant to Code of Civil Procedure sections 1281.2 and 1281.4 must state, in addition to other required allegations, the provisions of the written agreement and the paragraph that provides for arbitration. The provisions must be stated verbatim or a copy must be physically or electronically attached to the petition and incorporated

by reference”].)

Once petitioners allege that an

arbitration agreement exists, the burden shifts to respondents to prove the

falsity of the purported agreement, and no evidence or authentication is

required to find the arbitration agreement exists. (See *Condee v. Longwood Mgt. Corp.*

(2001) 88 Cal.App.4th 215, 219.) However, if the existence of the agreement is

challenged, “petitioner bears the burden of proving [the arbitration

agreement’s] existence by a preponderance of the evidence.” (*Rosenthal v. Great Western Fin. Securities*

Corp. (1996) 14 Cal.4th 394, 413; see also *Espejo v. Southern California*

Permanente Medical Group (2016) 246 Cal.App.4th 1047, 1058-1060.) Once a document containing an arbitration

provision is presented to the court, the burden shifts to the party opposing

the motion to compel, who may present any challenges to the enforcement of the

agreement and evidence in support of those challenges. [Citation]” (*Baker v. Italian Maple Holdings, LLC*

(2017) 13 Cal.App.5th 1152, 1160.)

Here, Defendant presents that a

valid written arbitration agreement exists as Plaintiff signed the Offer Letter

and Arbitration Agreement that included an arbitration agreement on or about August

24, 2022. The arbitration agreement

reads, in relevant part:

1. Arbitration. This Agreement is governed by the

Federal Arbitration Act (9 U.S.C. §§ 1 et seq.). The Federal Arbitration Act's substantive and procedural provisions shall exclusively govern and apply with full force and effect to this arbitration agreement, including its enforcement, and any state court of competent jurisdiction shall compel arbitration in the same manner as a federal court under the Federal Arbitration Act. Except as it otherwise provides, this Agreement applies to any dispute arising out of or related to your employment with DoorDash, Inc. ("Company") or relationship with any of its agents, employees, affiliates, successors, subsidiaries, assigns or parent companies or termination of employment regardless of its date of accrual and survives after the employment relationship terminates. Except as it otherwise provides, this Agreement is intended to apply to the resolution of disputes that otherwise would be resolved in a court of law or before a forum other than arbitration. Except as otherwise stated in this Agreement, you and the Company agree that any legal dispute or controversy covered by this Agreement, or arising out of, relating to, or concerning the existence, scope, validity, enforceability or breach of this Agreement, shall be resolved by final and binding arbitration in accordance with the Employment Arbitration Rules of the American Arbitration Association ("AAA Rules") then in effect, and not by court or jury trial, to be held (unless the parties agree in writing otherwise) within 45 miles of the location and in the same state, where you are or were

last employed by the Company. The AAA Rules may be found at www.adr.org or by

searching for “AAA Employment Arbitration Rules” using a service such as

www.Google.com or by asking the Company’s Human Resources Department (Tel.

614-378-1866) for a copy of the rules. If for any reason the AAA will not

administer the arbitration, either party may apply to a court of competent

jurisdiction with authority over the location where the arbitration will be conducted

for appointment of a neutral Arbitrator.

(Declaration of Joe Ryan (“Ryan Decl.”) ¶ 13, Ex. 1.) As presented, Plaintiff’s signature is dated August

24, 2022. (Ibid.)

Based on this evidence, Defendant

has met its initial burden to show that an arbitration agreement between the

parties exists, and the burden shifts to Plaintiff. Plaintiff does not dispute the existence of

the agreement, signing of the agreement, or its application to her employment

claims.

B.

Body of Law Determination

As a threshold matter, the Court must determine

which body of law – the FAA or the California Arbitration Act (Code Civ. Proc.,

§1280 et seq.) (“CAA”) – applies to the issues presented here as the

two statutory schemes apply different standards and presumptions. The FAA embodies a strong federal policy

favoring arbitration. To assure uniform

results as to arbitrability of disputes subject to the FAA, conflicting state

law is preempted under the Supremacy Clause: "Federal law in the terms of

the Arbitration Act governs . . . [arbitrability] in either state or federal

court." (Southland Corp. v.

Keating (1984) 465 U.S. 1, 12; Preston v. Ferrer (2008) 552 U.S.

346, 353. See also Muller v. Roy Miller Freight Lines, LLC (2019) 34

Cal.App.5th 1056, 1062 [FAA preempts any state law rule that "'stand[s] as

an obstacle to the accomplishment of the FAA's objectives"].)

Here, the arbitration agreement states

clearly that the FAA governs:

This Agreement is

governed by the Federal Arbitration Act (9 U.S.C. §§1 et seq.). The Federal

Arbitration Act's substantive and procedural provisions shall exclusively

govern and apply with full force and effect to this arbitration agreement,

including its enforcement, and any state court of competent jurisdiction shall

compel arbitration in the same manner as a federal court under the Federal

Arbitration Act.

(Ryan Decl. ¶ 13, Ex. 1.)

Plaintiff does not dispute the application of the FAA.

C.

Unconscionability Analysis

The doctrine of unconscionability refers to “an absence of

meaningful choice on the part of one of the parties together with contract

terms which are unreasonably favorable to the other party.” (Sonic-Calabasas A, Inc. v. Moreno (2013)

57 Cal.4th 1109, 1133.) It consists of

both procedural and substantive components - “the former focusing on

oppression or surprise due to unequal bargaining power, the latter on overly

harsh or one-sided results.” (Ibid.)

Both substantive and procedural unconscionability must be

present to invalidate an arbitration agreement; however, they do not need to be

present in the same degree. (Armendariz

v. Foundation Health & Psychcare Services, Inc. (2000) 24 Cal.4th 83, 114; Parada

v. Superior Court (2009) 176 Cal.App.4th 1554, 1570.) “Essentially a sliding scale is invoked which

disregards the regularity of the procedural process of the contract formation,

that creates the terms, in proportion to the greater harshness or

unreasonableness of the substantive terms themselves. In other words, the more

substantively unconscionable the contract term, the less evidence of procedural

unconscionability is required to come to the conclusion that the term is

unenforceable, and vice versa.” (Armendariz,

supra, (2000) 24 Cal.4th 83 at 114.)

"The party resisting arbitration bears the burden of

proving unconscionability." (Pinnacle

Museum Tower Assn. v. Pinnacle Market Development (US), LLC (2012) 55

Cal.4th 223, 247.)

Defendant argues that the arbitration agreement is not

procedurally or substantively unconscionable.

Defendant requests that, in the event the Court finds any provision

unenforceable, the Court should sever the offending provision. Plaintiff does not oppose the Motion on the

basis of unconscionability.

D.

Applicability of the EFAA

The central dispute between the

parties is whether the Ending Forced Arbitration Act ("EFAA") bars arbitration

of Plaintiff's claims.

According to the EFAA:

"[A]t the election of the person alleging conduct

constituting a sexual harassment dispute or sexual assault dispute, or the

named representative of a class or in a collection action alleging such

conduct, no predispute arbitration agreement or predispute joint-action waiver

shall be valid or enforceable with respect to a case which is filed under

Federal, Tribal, or State law and relates to the sexual assault dispute or the

sexual harassment dispute.”

(9 U.S.C. §402, subd. (a); Murrey

v. Superior Court (2023) 87 Cal.App.5th 1223, 1234 [discussing the

applicability of the EFAA]; Yost v. Everyrealm, Inc. (2023) 657

F.Supp.3d 563, 585 [plaintiff must plead plausible allegations of sexual

harassment to invoke the EFAA].)

The EFAA defines a sexual

harassment dispute as one “relating to conduct that is alleged to constitute

sexual harassment under applicable Federal, Tribal, or State law.” (9 U.S.C. § 401, subd. (4).) Pursuant to the Fair Employment and Housing

Act (“FEHA”), Government Code, section 12940, subdivision (j)(4)(C),

“‘harassment’ because of sex includes sexual harassment, gender harassment, and

harassment based on pregnancy, childbirth, or related medical condition.

Sexually harassing conduct need not be motivated by sexual desire.” “FEHA’s prohibition against sexual harassment

includes protection from a broad range of conduct, ranging from expressly or

impliedly conditioning employment benefits on submission to or tolerance of

unwelcome sexual advances, to the creation of a work environment that is

hostile or abusive on the basis of sex.” (Lewis v. City of Benicia (2014) 224

Cal.App.4th 1519, 1524 [internal quotations omitted].)

Moreover, 9 U.S.C. § 402 only

applies to well-pleaded claims. (Yost

v. Everyrealm, Inc. (2023) 657 F.Supp.3d 563, 585.) A claim for harassment under FEHA requires

allegations that “(1) plaintiff belongs to a protected group; (2) plaintiff was

subject to unwelcome harassment; (3) the harassment complained of was based on

plaintiff’s membership in the protected group; (4) the harassment complained of

was sufficiently pervasive so as to alter the conditions of employment and

create an abusive working environment; and (5) respondeat superior.” (See Guthrey v. State of California

(1998) 63 Cal.App.4th 1108, 1122.)

“A single incident of harassing

conduct is sufficient to create a triable issue regarding the existence of a

hostile work environment if the harassing conduct has unreasonably interfered

with the plaintiff’s work performance or created an intimidating, hostile, or

offensive working environment.” (Gov.

Code, §12923, subd. (b).) “[T]he

question of whether or not there is a hostile work environment must be

determined from the totality of the circumstances. In making this determination the trier of

fact should consider, ‘(1) the nature of the unwelcome sexual acts or words

(with physical touching generally considered more offensive than mere words);

(2) the frequency of the offensive acts or encounters; (3) the total number of days over which all the offensive conduct occurred; and (4) the context in which the sexually harassing conduct occurred.” (Sheffield v. Los Angeles County (2003) 109 Cal.App.4th 153.)

In Roby v. McKesson Corp.,

the Court noted that there is a distinction between discrimination and harassment in regard to the application of FEHA, “discrimination refers to bias in the exercise of official actions on behalf of the employer, and harassment refers to bias that is expressed or communicated through interpersonal relations in the workplace.” (Roby v.

McKesson Corp. (2009) 47 Cal.4th 686, 707.) Thus, harassment focuses on “conduct outside

the scope of necessary job performance, conduct presumably engaged in for

personal gratification, because of meanness or bigotry, or for other personal

motives... [Citation.]” (Ibid.) The Court noted that “harassment is generally

concerned with the message conveyed to an employee, and therefore with the

social environment of the workplace, whereas discrimination is concerned with

explicit changes in the terms or conditions of employment. (Ibid.) However, “in some cases the hostile message

that constitutes the harassment is conveyed through official employment

actions, and therefore evidence that would otherwise be associated with a

discrimination claim can form the basis of a harassment claim.” (Ibid.; Miller v. Department of

Corrections (2005) 36 Cal.4th 446, 468.) Thus, “in analyzing the sufficiency of evidence in support of a harassment claim, there is no basis for excluding evidence of biased personnel management actions so long as that evidence is relevant to prove the communication of a hostile message.” (Ibid.)

Defendant argues that Plaintiff

does not allege sufficient facts showing that she was subjected to conduct or comments based on her gender that were severe or pervasive enough to create a hostile work environment and give rise to the cause of action. The Complaint consists of broad and vague conclusory statements without referring to frequency or context of this conduct. Furthermore, the Complaint lacks allegations establishing that the alleged harassment was because of Plaintiff’s sex. Defendant also argues that Plaintiff’s allegations “describe the byproduct of a workplace investigation and interpersonal workplace dynamics, not a pattern of sex-based harassment directed at Plaintiff because of her sex.”

(Motion, p. 11.) At most, these

allegations might support a discrimination or retaliation theory, but not a harassment claim. Thus, Plaintiff has failed to plead a sexual harassment claim that would fall under the protections of the EFAA.

Alternatively, Defendant argues

that even if the sexual harassment allegations are sufficient, the EFAA would

only preclude arbitration of claims that “relate to” the sexual harassment

dispute. Plaintiff’s other claims, which

arise out of her disability and medical leave, exist independently and should

be compelled to arbitration.

Plaintiff opposes the motion under

the EFAA, contending that this case relates to a sexual harassment dispute and

that she has elected to proceed in court.

Plaintiff argues that the conduct involved Plaintiff’s dating life,

untrue rumors about being in an inappropriate, romantic relationship with her

supervisor of the same sex does constitute harassing conduct based on sex. These claims are more than “workplace

management” issues as it is not a necessary personnel management action to

discuss an employee’s dating preferences and make conclusions about an

employee’s sexuality in the workplace.

In its Reply, Defendant reiterates

its argument that the Complaint does not plead sufficient facts for a

harassment claim on the basis of Plaintiff’s sex, “only the byproducts of a

workplace investigation and co-worker gossip that, if anything, sound in

discrimination, not harassment.” (Reply

at 1:15-16.) As there is no sexual

harassment claim, the EFAA does not apply and the entire case must be submitted

to arbitration.

According to the Complaint,

Plaintiff began her employment with Defendant around September 12, 2022, as a

Full Time Support Escalations Representative.

(Complaint, ¶ 7.) Around June and

July 2024, Plaintiff reported concerns about leadership, her supervisor's

professionalism, pay discrepancies, favoritism, ethical issues, and other

concerns. (Id. ¶¶ 10-13.) Around July 2024, Plaintiff reported that her

supervisor engaged in inappropriate behavior, including a personal relationship

with a subordinate. (Id. ¶¶ 14-15.)

On August 5, 2024, Defendant's

Workplace Investigation Managers ("Managers") interviewed Plaintiff regarding

an investigation concerning her supervisor and Plaintiff reported that her

supervisor had an inappropriate relationship with a subordinate, among other

concerns. (Id. ¶ 17.) On August 29, 2024, Plaintiff was interviewed

by the Managers again and during the interview, learned that they had accessed

her personal information, including her dating profile. (Id. ¶ 18.) Around August 29 and September 23, 2024,

"Plaintiff expressed to Defendant that she had serious concerns about why and

how the investigators accessed her private, personal information" and also

informed Defendant that her co-workers had initiated rumors that she engaged in

a romantic relationship with her supervisor.

(Id. ¶ 19.) Plaintiff

requested that Defendant take action against the coworkers initiating such

rumors. (Ibid.) Around September 23, 2024, Plaintiff reported

to Defendant that she received unsolicited calls and text messages from her

colleagues suggesting that she was involved in an inappropriate relationship

with her supervisor and reported that these false allegations were damaging to

her reputation. (Id. ¶ 20.)

On October 3, 2024, Plaintiff

emailed Defendant's Senior Workplace Investigator Anthony Martinez ("Martinez")

and "reported that she experienced a hostile work environment, retaliation from

her former manager, inappropriate disclosures of her personal information,

false rumors about her, reputational damage from these rumors, severe emotional

distress, and that she needed a medical leave of absence as a result of the

emotional distress." (Id. ¶ 21.) Around October 17, 2024, the Martinez

informed Plaintiff that he could not substantiate her claims. (Id. ¶ 22.) From February through April 2025, Defendant's

leave and accommodations personnel repeatedly requested updated medical

documentation from Plaintiff and discussed her return-to-work date from

disability leave. After Plaintiff

reported delays in obtaining documentation and asked for an extension,

Defendant terminated her employment on April 28, 2025. (Complaint, ¶¶ 23-35.)

The Complaint incorporates all

general allegations and adds the following allegations under the sexual

harassment cause of action. Plaintiff

alleges that “Defendants harassed Plaintiff on account of her gender” and the

harassing conduct, which was “unwanted, serious, and pervasive” included “the

creation of a hostile work environment.”

(Complaint, ¶¶ 70-72.) As a

proximate result, Plaintiff has and continues to suffer harm, including “loss

of wages and benefits, and the intangible loss of employment related

opportunities in Plaintiff’s field and damage to Plaintiff’s professional

reputation,” “emotional distress, humiliation, mental anguish, and

embarrassment, as well as the manifestation of physical symptoms.” (Id. ¶¶ 73-74.)

As discussed in more detail in the

Court’s concurrent ruling on Defendant’s demurrer, Plaintiff alleges that: (1)

during a workplace investigation, Defendant accessed her personal dating app

profile without her consent; (2) co-workers initiated and spread rumors that

she engaged in a romantic relationship with her supervisor; (3) she received

unsolicited calls and text messages from colleagues suggesting that she was in

an inappropriate relationship with her supervisor; and (4) she reported a

hostile work environment, reputational damage, and severe emotional distress. The Court finds that Plaintiff has adequately alleged conduct that could be found to be sufficiently severe or pervasive.

However, these allegations do not

demonstrate that the alleged harassment was based on a protected

characteristic. The Complaint does not

allege that the rumors were about a same-sex relationship, that any comments

were made about Plaintiff's sexual orientation, or that any conduct was

directed at Plaintiff because she is a woman.

Because the Court sustains the

demurrer to the sexual harassment cause of action with leave to amend, the

Court does not find it proper to make a determination on the merits of the

instant Motion to Compel until Plaintiff has had an opportunity to file an

amended complaint.

For this reason, Defendant's

Motion to Compel is denied without prejudice.

Conclusion

Defendant

DoorDash Inc.'s Motion to Compel Arbitration and Stay Proceedings is denied

without prejudice.

Date: September 22, 2026 _____

William E. Weinberger

Judge, Los Angeles Superior Court